

CV-24-006834 GRAYS, WILLIE, Jr vs JAMES, PATRICIA – Plaintiff Willie Grays Jr.'s Motion for Leave to File a Second Amended Complaint – DENIED.

County: stanislaus

Division: Civil Law and Motion

Department: 23

Hearing date: 2012-04-02

Motion: As a preliminary matter, the Court notes that Plaintiff's reply brief exceeds the page limit prescribed by Cal. Rules of Ct., Rule 3.1113(d). Therefore, the Court has not considered the material contained in the excess pages. While the Court recognizes the liberal judicial policy favoring amendment, the circumstances herein portray a situation where Plaintiff has failed to demonstrate that the proposed amendment is reasonable or necessary. (Cal. Rules of Ct., rule 3.1324.) Given the procedural history of both this action and the underlying medical malpractice action, and specifically Plaintiff's repeated judicial admissions with regard to the date of discovery of his cause of action in the medical case, the Court finds Plaintiff's explanation for the inconsistent allegations in his proposed amended pleading insufficient and can only conclude that the proposed amendment herein is offered for the sole purpose of avoiding an adverse outcome. Therefore, granting leave to amend would constitute an idle act, as the proposed amended pleading is certain to be disregarded via application of the sham pleading doctrine. (See, e.g. Smyth v. Berman (2019) 31 Cal.App.5th 183, 196; American Advertising & Sales Co. v. Mid-Western Transport (1984) 152 Cal.App.3d 875, 878-880.) Further, the Court finds that Plaintiff has not demonstrated grounds for relief from the binding effect of his multiple judicial admissions herein based on the alleged failures of his attorneys. (See, e.g., Bucur v. Ahmad (2016) 244 Cal.App.4th 175.)

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